

Trustee's Sale and Order to Show Cause re Preliminary Injunction. Plaintiff indicated the sale date was February 2, 2026. The Temporary Restraining Order was denied and the OSC was set for hearing March 5, 2026.

Plaintiff has filed no further documents. Plaintiff has filed no proof of service of the summons, complaint, or the Order to Show Cause. Cal. Rules of Ct. 3.110; 3.1151. All the Court has received is a Notice of Non-Monetary Status of Defendant Fortra Law, the trustee under the deed of trust. Additionally, the proposed sale date has passed without any indication of its outcome.

As the Plaintiff has failed to demonstrate compliance with obligations, the Motion is **denied**. The Initial Case Management Conference date is set for June 9.

16. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY:
TENTATIVE RULING:
Taken off calendar.

17. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**
FILED BY:
TENTATIVE RULING:

Plaintiff Alicia Kalamas moves to strike, or in the alternative, tax costs. Defendant John Muir Health prevailed at a trial held before a referee appointed pursuant to Code of Civil Procedure section 638. The issues at trial concerned the circumstances of her termination as an employee.

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Plaintiff's arguments are addressed as follows:

Validity of the Verification

Plaintiff contends that the required verification is inadequate, because the signer lacks personal knowledge of the necessity for the items, including a stipulation concerning JAMS costs. This does not render the verification facially inadequate. It may render the costs nonrecoverable, but each category will be addressed on their merits in turn.

Expert Fees